

M/s K.L. Concast Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 July 2026 · Writ-C No. 20059 of 2011 · **Notice to Advocate General of U.P.; listed week of 17.08.2026**

HEADNOTE

On a 2011 writ challenging the vires of the U.P. Electricity Supply Code, 2005, the Division Bench treated the 6 April 2011 notice to the Attorney General of India as inadvertent, directed notice instead to the Advocate General of Uttar Pradesh, called for an affidavit of deposits already made under that order, and listed the matter for the week commencing 17 August 2026. No clause of the Code was construed.

FACTUAL SUMMARY

M/s K.L. Concast Pvt. Ltd. filed Writ-C No. 20059 of 2011 in the Allahabad High Court against Pashchimanchal Vidyut Vitran Nigam Ltd. and others, challenging the vires of the U.P. Electricity Supply Code, 2005. The petition has remained pending since 2011. When it was entertained on 6 April 2011, notice was issued to the Attorney General of India. The petitioner has since deposited the amount required by that order. The Division Bench took the matter up on 15 July 2026.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Notice on vires challenge; listing

HOLDING

Because the writ challenges the vires of the U.P. Electricity Supply Code, 2005, notice for appearance is to go to the Advocate General of Uttar Pradesh, not the Attorney General of India (the 6 April 2011 notice to the Attorney General was inadvertent). An affidavit of deposits made under that order is to be filed, State respondents may object, and the petition is listed for the week commencing 17 August 2026. ¶ 1-3

FLAG interlocutory listing; no construction of the Supply Code

PRINCIPLE TAGS

procedural-listing-no-construction On a 2011 writ challenging the vires of the U.P. Electricity Supply Code, 2005, the Division Bench treated the 6 April 2011 notice to the Attorney General of India as inadvertent, directed notice instead to the Advocate General of Uttar Pradesh, called for an affidavit of deposits already made under that order ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF U.P. ELECTRICITY SUPPLY CODE, 2005

The writ remains pending; validity of the Code is not decided on this listing. ¶ 1